



CHAPTER cxxii.

An Act to confirm certain Provisional Orders of the A.D. 1909.
Local Government Board relating to Birmingham and
Wakefield. [16th August 1909.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Local Government Act 1888:

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Orders should be
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1909. Short title.

A.D. 1909.

SCHEDULE.

CITY OF BIRMINGHAM.

*Birmingham
Order.*

*Provisional Order made in pursuance of Sections 54 and 59
of the Local Government Act 1888.*

- To the Lord Mayor Aldermen and Citizens of the City of Birmingham ; —
- To the Justices of the Peace for the said City ; —
- To the Court of Quarter Sessions for the said City ; —
- To the Justices of the Peace for the County of Warwick in Quarter Sessions assembled ; —
- To the Justices of the Peace for the County of Worcester in Quarter Sessions assembled ; —
- To the County Council of Warwick ; —
- To the County Council of Worcester ; —
- To the Rural District Council of Halesowen ; —
- To the Guardians of the Poor of the King's Norton Union ; —
- To the Guardians of the Poor of the Stourbridge Union ; —
- To the Parish Council of Quinton ; —
- To the Overseers of the Poor of the Parish of Quinton ; —
- To the Birmingham Tame and Rea District Drainage Board ; —
- To the Stourbridge and Halesowen Hospital Committee ; —
- And to all others whom it may concern.

51 & 52 Vict.
c. 41.

WHEREAS by Section 54 of the Local Government Act 1888 the Local Government Board are empowered to make a Provisional Order for altering the boundary of any Borough and by such Order to divide or alter any electoral division ;

And whereas the City of Birmingham is a County Borough within the meaning of the Local Government Act 1888 and is for the purposes of that Act situate in the County of Warwick and the inhabitants are a body corporate by the name of the Lord Mayor Aldermen and Citizens of the City of Birmingham and act by the Council of the said City which now consists of the Lord Mayor (who is also an Alderman) seventeen other Aldermen and fifty-four Councillors ;

And whereas the said City is for the purposes of the election of Councillors divided into eighteen wards one of which is known as the Edgbaston and Harborne Ward ;

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And whereas the said City is an Urban Sanitary District of which the Lord Mayor Aldermen and Citizens acting by the Council are the Urban Sanitary Authority ;

And whereas the said City has a separate court of quarter sessions commission of the peace police force recorder and coroner ;

And whereas in pursuance of the Education Act 1902 the Council of the said City are the local education authority ;

2 Edw. 7.
c. 42.

And whereas the unrepealed provisions of the Local Acts specified in Part I. of the First Schedule and in Part I. of the Second Schedule to this Order and of the Confirmation Acts specified in Part II. of the First Schedule and in Part II. of the Second Schedule to this Order so far as the last-mentioned Acts relate to the Orders specified in the said Schedules are in force in the said City ;

And whereas the Urban Sanitary Authority of the said City have adopted the provisions of—

(a) The Infectious Disease (Prevention) Act 1890 ;

53 & 54 Vict.
c. 34.

(b) The Public Health Acts Amendment Act 1890 ;

53 & 54 Vict.
c. 59.

(c) The Notification of Births Act 1907 ;

7 Edw. 7.
c. 40.

and those provisions are accordingly in force in the said City ;

And whereas the Baths and Washhouses Acts 1846 to 1899 and the Public Libraries Acts 1892 to 1901 are in force in the said City ;

9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.
41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.
59 & 60 Vict. c. 59.
62 & 63 Vict. c. 29.
55 & 56 Vict. c. 53.
56 Vict. c. 11.
1 Edw. 7. c. 19.
15 & 16 Vict. c. 85.
6 Edw. 7. c. 44.

And whereas the Council of the said City are the authority for the execution of the Burial Acts 1852 to 1906 within the City ;

And whereas the said City is a Constituent District of the Birmingham Tame and Rea Main Sewerage District of which the governing body is the Birmingham Tame and Rea District Drainage Board ;

And whereas the Parish of Quinton in the Administrative County of Worcester immediately adjoins the said City and is a contributory place in the Rural District of Halesowen and is subject to the jurisdiction of the Rural District Council of Halesowen and one Rural District Councillor is elected for the said Parish of Quinton ;

And whereas the said Rural District Council have adopted the provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts and those provisions are accordingly in force in the said Rural District ;

53 & 54 Vict.
c. 34.
53 & 54 Vict.
c. 59.

A.D. 1909. And whereas the King's Norton Union includes the Parish of
Birmingham Edgbaston which is comprised in the said City and twenty-eight
Order. Guardians are elected for the several parishes comprised in that
Union ;

And whereas the said Parish of Quinton is included in the
Stourbridge Union ;

And whereas by virtue of the Stourbridge and Halesowen Hospital
(County of Worcester) Order 1896 and the Stourbridge and Halesowen
Hospital (County of Worcester) Order 1897 the said Parish of Quinton
forms part of the Stourbridge and Halesowen Hospital District con-
stituted by those Orders under the Isolation Hospitals Act 1893 ;

56 & 57 Vict. And whereas the said Parish of Quinton is a Rural Parish within
c. 73. the meaning of the Local Government Act 1894 for which a Parish
Council has been established ;

And whereas in pursuance of the Education Act 1902 the said
Parish of Quinton forms part of the area of the County Council of
the Administrative County of Worcester as the local education
authority ;

And whereas the said Parish of Quinton is included in the Hasbury
Electoral Division of the Administrative County of Worcester :

51 & 52 Vict. Now therefore We the Local Government Board in pursuance of
c. 41. the powers given to Us by Sections 54 and 59 of the Local Government
Act 1888 and by any other enactments in that behalf do hereby order
that from and after the date of the Act of Parliament confirming this
Order the following provisions shall take effect:—

Definitions.

Art. I. In this Order—

- (1) The expression "the commencement of this Order" means
the Ninth day of November One thousand nine hundred
and nine ;
- (2) The expression "the existing City" means the City of
Birmingham as it existed immediately prior to the com-
mencement of this Order ;
- (3) The expression "the City" means the existing City as
extended by this Order ;
- (4) The expression "the Corporation" means as the context
requires the Lord Mayor Aldermen and Citizens of the
existing City or of the City acting by the Council ;
- (5) The expressions "the Sewerage District" and "the Drainage
Board" mean respectively the Birmingham Tame and
Rea Main Sewerage District and the Birmingham Tame
and Rea District Drainage Board ;

[9 EDW. 7.] *Local Government Board's* [Ch. cxxii.]
Provisional Orders Confirmation (No. 7) Act, 1909.

- (6) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Halesowen and the Rural District Council of that district; A.D. 1909.
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Order.
- (7) The expression "the City maps" means the two maps each marked "Map of the City of Birmingham as extended 1909" and sealed with the official seal of the Local Government Board;
- (8) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;
- (9) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;
- (10) The expression "the Local Acts" means the Acts specified in Part I. of the First Schedule and in Part I. of the Second Schedule to this Order;
- (11) The expressions "the Confirmation Acts" and "the Provisional Orders" mean respectively the Confirmation Acts and the Provisional Orders specified in Part II. of the First Schedule and in Part II. of the Second Schedule to this Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and nine : Commence-
ment of
Order.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the City under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the Administrative County of Worcester in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year One thousand nine hundred and nine and of the revision of the basis or standard of the county rate this Order shall operate from the date of the Act of Parliament confirming this Order : Date of
operation of
Order for
parish bur-
gess lists &c.
51 Vict. c. 10.

Provided also that for the purposes of Sections 20 22 23 24 and 26 of the Act of 1888 and for the purposes of the Local Taxation (Customs and Excise) Act 1890 as amended by Section 17 of the Finance Act 1907 and Section 6 of the Finance Act 1908 and as Date of operation
for purposes of
certain grants
and Local Taxa-
tion Licences.
53 & 54 Vict. c. 60.
7 Edw. 7. c. 13.
8 Edw. 7. c. 16.

A.D. 1909. affected by any Order in Council made under the last-mentioned
Birmingham enactment the City shall be deemed not to have been altered and the
Order. Parish of Quinton shall be deemed to continue part of the Administrative County of Worcester until after the Thirty-first day of March One thousand nine hundred and ten.

Extension of Art. III.—(1) The boundary of the existing City the area whereof
City. is coloured pink on the City maps shall be altered so as to include in addition to that area so much of the Rural District as comprises the Parish of Quinton the area whereof is coloured green on the City maps.

(2) The boundary of the City shall be that shown by the red line on the City maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the City and shall be the County Borough for the purposes of the Act of 1888.

Deposit of Art. IV.—(1) One of the City maps shall be deposited in the
maps. office of the Local Government Board and the other shall be deposited by the town clerk of the existing City at his office within fourteen days after the date of this Order. Copies of the map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council of the Administrative County of Warwick to the Clerk of the County Council of the Administrative County of Worcester to the Clerk to the Rural Council to the Board of Inland Revenue to the Registrar-General and to the Board of Agriculture and Fisheries.

Copies of (2) Copies of or extracts from the map deposited with the town
map to be clerk certified by him to be true shall be received in all courts of
evidence. justice and elsewhere as *primâ facie* evidence of the contents of the map so far as it relates to the boundaries of the City and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the City and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be demanded by the Corporation. All fees so received shall be carried to the credit of the Borough fund.

Alteration Art. V.—(1) The boundary between the Administrative County of
of county Warwick and the Administrative County of Worcester shall be altered
boundary. so that the City shall be wholly situate in the County of Warwick and the County Borough of Birmingham shall for the purposes of the Act of 1888 including the purposes of any commission of assize oyer and terminer or gaol delivery the service of jurors the making of jury lists sheriff lieutenant and militia be within the County of Warwick.

[9 EDW. 7.] *Local Government Board's* [Ch. cxxii.]
Provisional Orders Confirmation (No. 7) Act, 1909.

(2) Lists of prisoners writs process and particulars and all records and documents relating to or to be executed in connexion with any action or proceeding pending or existing at the commencement of this Order and appertaining to the Parish of Quinton shall be delivered turned over or transferred and signed in like manner in all respects so nearly as circumstances admit as is required to be done upon a new sheriff coming into office in like manner as if the sheriff of the County of Warwick were as respects the Parish of Quinton the new sheriff in succession to the sheriff of the County of Worcester.

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*Birmingham
Order.*

Transfer
of lists of
prisoners &c.

(3) The powers and duties of the quarter sessions recorder clerk of the peace and coroner of the existing City of the justices of the peace and stipendiary magistrate appointed for the existing City and of the clerk to those justices and of the police constables and other peace officers of the existing City shall extend to and apply throughout the City :

Powers and
duties of
justices &c.
extended.

Provided that every person committing an offence in the Parish of Quinton prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made :

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the Parish of Quinton may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made :

Provided further that every proceeding which prior to the commencement of this Order has in relation to any case arising in the Parish of Quinton been begun by or before the Coroner for the North District of the Administrative County of Worcester shall be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Coroners'
jurisdiction.

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and the other lists to be made under the Municipal Corporations Acts and of all matters connected with incidental to or consequent upon those purposes the Parish of Quinton shall be deemed to have always been part of the City.

Parish bur-
gess lists &c.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the Administrative County of Worcester in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

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Order.

(3) Where any difficulty in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk of the existing City or the clerk of the County Council of the Administrative County of Worcester as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk of the said County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

Division into
wards.

Art. VII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

- (1) For the purposes of the election of Councillors the City shall continue to be divided into eighteen wards:
- (2) The Parish of Quinton shall be included in the Edgbaston and Harborne Ward:
- (3) The Councillors representing the Edgbaston and Harborne Ward who will not go out of office on the First day of November One thousand nine hundred and nine shall be deemed from and after the commencement of this Order to represent that Ward as altered by this Article.

Corporation
Local Acts
and Orders.

Art. VIII. Subject to the provisions of this Order—

- (1) The unrepealed provisions of the Local Acts and of the Confirmation Acts so far as the last-mentioned Acts respectively relate to the Provisional Orders and of any other Local Act or Provisional Order duly confirmed by Parliament affecting the existing City or the Corporation as the same respectively are in force within the existing City at the commencement of this Order shall extend and apply to the City and shall have effect as if for any reference therein to the existing City and the Corporation there were substituted a reference to the City and the Corporation of the City:

[9 EDW. 7.] *Local Government Board's* [Ch. cxxii.]
Provisional Orders Confirmation (No. 7) Act, 1909.

- (2) Nothing in this Order shall prejudicially affect the powers duties and liabilities of the South Staffordshire Water-works Company or extend the limits within which the Corporation may supply water so as to include any area within the limits of supply of that Company.
- A.D. 1909.
*Birmingham
 Order.*

Art. IX. The Local Acts the Confirmation Acts and the Provisional Orders so far as they relate to the Sewerage District and are specified in Part I. and in Part II. of the Second Schedule to this Order shall be adapted and modified so that the following provisions shall have effect that is to say:—

Local Acts
 and Confir-
 mation Acts
 relating to
 the Sewer-
 age District.

- (1) The City shall be a Constituent District of the Sewerage District and the Corporation of the City shall be a constituent authority of the Drainage Board:
- (2) All references in the Local Acts the Confirmation Acts and the Provisional Orders to the existing City the Corporation of the existing City and the Mayor shall have effect as if for those references there were substituted references to the City the Corporation of the City and the Lord Mayor:
- (3) All references in the Local Acts the Confirmation Acts and the Provisional Orders to the constituent districts and to the constituent authorities respectively shall be deemed to include the City and the Corporation of the City respectively: and
- (4) The elective members representing the Corporation of the existing City upon the Drainage Board who may be in office at the commencement of this Order shall continue to represent the Corporation of the City.

Art. X.—(1) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing City shall thenceforth apply to the City until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments or scale of charges are altered or repealed.

Byelaws &c.

(2) All byelaws and regulations made by the County Council of the Administrative County of Worcester or the Rural Council or their predecessors and in force immediately before the commencement of this Order in the Parish of Quinton shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved by the Rural Council before that date or have been sent to the surveyor or clerk to the Rural Council one month at least before that date and have not been disapproved by that Council As regards any such work as aforesaid the byelaws in

A.D. 1909. force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the City were referred to therein instead of the Rural Council and the Rural District. Provided that any proceedings which might have been taken by the County Council of the Administrative County of Worcester or the Rural Council against any person for any offence committed before the commencement of this Order against any byelaws and regulations made by either of the said Councils or their predecessors and in force immediately before the commencement of this Order in the Parish of Quinton may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for that Council.

Exclusion of
Parish from
Hospital
District.

Art. XI. The Parish of Quinton shall cease to form part of the Halesowen Hospital District and the Stourbridge and Halesowen Hospital (County of Worcester) Order 1896 and the Stourbridge and Halesowen (County of Worcester) Order 1897 shall have effect as if for the purposes of those Orders the Rural District of Halesowen as diminished by this Order and the Council of that District were the Rural District and the Rural District Council to which those Orders relate.

Town clerk
and other
officers con-
tinued.

Art. XII.—(1) The town clerk and all other officers and servants of the Corporation of the existing City who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the City and shall hold their offices by the same tenure as at that date.

City auditors.

(2) The auditors of the existing City who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the city auditors until the next ordinary day of election of city auditors for the said purposes.

Compensa-
tion to exist-
ing officers.

Art. XIII.—(1) Every clerk to justices and county coroner and every officer or servant of or paid by the County Council of the Administrative County of Worcester or of or paid by the Standing Joint Committee of that Administrative County and every other officer and servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation regard shall be had to

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the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the improvement rate of the City and in every other case out of the borough fund and borough rate of the City and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

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Order.*

(2) For the purposes of subdivision (1) of this Article any officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the County Council of the Administrative County of Worcester or the Standing Joint Committee of the Administrative County of Worcester or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Art. XIV.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Rural Council in relation exclusively to any part of the Parish of Quinton shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the City.

*Actions &c.
not to abate.*

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council or their predecessors in relation exclusively to any part of the Parish of Quinton shall be of as full force and effect against or in favour of the Corporation of the City and may be continued and enforced as fully and effectually as if instead of the Rural Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

*Saving for
contracts &c.*

Art. XV. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing City shall by virtue of this Order be held by the Corporation for the benefit of the City and the Corporation shall hold enjoy and exercise for the benefit of the City all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for

*Corporation
property &c.*

[Ch. cxxii.] *Local Government Board's* [9 EDW. 7.]
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A.D. 1909. the benefit of the existing City and all liabilities which on the date
Birmingham aforesaid attach to the Corporation in respect of the existing City shall
Order. from and after that date attach to them in respect of the City.

Property &c.
of Rural
Council.

Art. XVI. Subject to the provisions of this Order—

(1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council in relation exclusively to any part of the Parish of Quinton shall by virtue of this Order be transferred to and vest in and attach to the Corporation as Urban Sanitary Authority and any property and liabilities vested in or attaching to the Rural Council in relation to any part of that Parish conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888 :

Cesser of juris-
diction of Rural
Council.

(2) The Rural Council shall cease to exercise any powers or have any duties within the Parish of Quinton :

Arrears of
rates &c.

(3) All arrears of rates made by the Overseers of the Poor of the Parish of Quinton for the purposes of the Public Health Act of 1875 for highway expenses which at the commencement of this Order are due or owing in respect of hereditaments in that Parish may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied and the balances if any shall be paid to the Corporation :

Adaptation
of provisions
as to adjust-
ment.

(4) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the

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requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction : A.D. 1909.
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Provided that where the authority affected by this Order or by anything done in pursuance of this Order are the Board of Guardians of a Poor Law Union Section 62 of the Act of 1888 shall apply with respect to any necessary adjustment with the modifications specified in the First Schedule to the Poor Law (Dissolution of School Districts and Adjustments) Act 1903.

Art. XVII. So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged on the improvement rate of the existing City shall by virtue of this Order be charged upon the improvement rate of the City and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing City shall by virtue of this Order be charged upon the borough fund and borough rate of the City and all those sums shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable. Mortgage
debts of
Corporation.

Art. XVIII. The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 the Public Libraries Acts 1892 to 1901 and the Notification of Births Act 1907 shall be in force in and apply to the City as if the same had been adopted therein. Adoptive
Acts.

Art. XIX. The Corporation shall be the Burial Board for the City and shall have within the City to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts 1852 to 1906. Corporation
to be Burial
Board for
City.

Art. XX.--(1) For the purposes of and subject to the provisions of the Education Acts 1870 to 1907 any byelaws in force in the existing City at the commencement of this Order shall from and after that date apply to the City until revoked or altered and from and after that date any byelaws then in force in the Parish of Quinton shall cease to be in force. Education
byelaws and
adjustment.

(2) Paragraph 22 of the Second Schedule to the Education Act 1902 shall apply and have effect with respect to any adjustment which for the purposes of that Act is required by reason of anything in or done in pursuance of this Order.

[Ch. cxxii.] *Local Government Board's* [9 EDW. 7.]
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Order.
 Managers.

(3) Any managers of a public elementary school in the Parish of Quinton who were appointed by the County Council of the Administrative County of Worcester or by the Parish Council of Quinton shall vacate office at the commencement of this Order.

County
 police.

Art. XXI.—(1) At the commencement of this Order such members if any of the police force of the Administrative County of Worcester as shall be determined by an agreement to be made as soon as practicable after the date of the Act of Parliament confirming this Order between the Standing Joint Committee of the Administrative County and the Watch Committee of the existing City or in default of any such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the City and any member of the county police force so transferred shall hold office upon the same tenure and upon the same terms and conditions as if this Order had not been made and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he is entitled shall not be less than they would have been if this Order had not been made.

53 & 54 Vict.
 c. 45.
 6 Edw. 7. c. 7.

(2) The provisions of Section 15 (2) of the Police Act 1890 as amended by the Police (Superannuation) Act 1906 shall extend and apply to and in relation to any member of the police force transferred under the powers of this Article as if that member had removed with the written sanction of the Chief Constable of the Administrative County of Worcester.

Adjustment
 of financial
 relations
 between
 Counties
 and County
 Boroughs.

Art. XXII.—(1) In any case where the extension of the City by this Order affects the distribution of the proceeds of the local taxation licenses or of the estate duty grant or of the Local Taxation (Customs and Excise) duties between the Administrative Counties of Warwick and Worcester the City and any other County Borough or any financial relations or questions between those areas or any adjustment which has been made in regard to the said distribution or financial relations or questions equitable adjustments may be made between the areas interested :

For the purposes of this subdivision or of anything done or to be done in pursuance of this subdivision any reference in the said subdivision to the proceeds of licences or duties shall include a reference to the sums which in pursuance of subsection (4) of Section 17 of the Finance Act 1907 as amended by Section 6 of the Finance Act 1908 have been paid or will be payable in lieu of those proceeds.

(2) Any such adjustment as is authorised by subdivision (1) of this Article may be made by agreement between the Councils of the City and the said Administrative Counties and County Boroughs before the

Thirtieth day of September One thousand nine hundred and ten and in default of any such agreement by the Local Government Board or if that Board think fit by any arbitrator appointed by them. A.D. 1909.
Birmingham Order.

(3) For the purposes of the said adjustments the provisions of the Act of 1888 relating to adjustments between Administrative Counties and County Boroughs shall apply with the necessary modifications and the Local Government Board or an arbitrator appointed by them as the case may be shall be substituted in those provisions for the Commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Order or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Local Government Board be deemed to be made by them otherwise than as arbitrators and any arbitrator appointed by them shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly:

Provided—

- (a) that in lieu of subsection (6) of Section 61 of the Act of 1888 subsections (1) and (5) of Section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Local Government Board under this Article and to the costs of those inquiries; and
- (b) that subsection (6) of Section 32 of the Act of 1888 shall apply to any agreement or award made under this Article.

Art. XXIII.—(1) Subject to the provisions of Section 54 of the Act of 1888 the Hasbury Electoral Division of the Administrative County of Worcester as diminished by the extension of the existing City shall continue to be an electoral division of the Administrative County and the person who immediately before the commencement of this Order is the County Councillor representing that electoral division shall continue to represent that division as if he had been originally elected to represent that division as hereby altered. *Electoral Divisions and County Councillors.*

(2) No County Alderman or County Councillor in office immediately before the commencement of this Order shall be deemed to lose his qualification by reason of the transfer of the Parish of Quinton to the City by this Order.

Art. XXIV.—(1) The Parish of Quinton shall cease to form part of the Stourbridge Union and shall be included in the King's Norton Union and all Orders which at the commencement of this Order are in force in that Union and applicable to the parishes comprised therein *Transfer of parish from Stourbridge Union to King's Norton Union.*

A.D. 1909. shall be in force in and apply to the Parish of Quinton and any
 Birmingham Orders which are in force in the Stourbridge Union shall to the extent
 Order. to which they are inconsistent with the said Orders cease to apply
 and have effect within the said Parish.

(2) Subject to the provisions of Section 60 of the Act of 1894 the number of Guardians to be elected for the King's Norton Union shall be increased from twenty-eight to twenty-nine and the additional Guardian shall represent the Parish of Quinton upon the Board of Guardians of that Union.

Guardian for
the Parish.

(3) The person who at the commencement of this Order is holding the office of Guardian of the Poor for the Parish of Quinton shall cease to be a member of the Board of Guardians of the Stourbridge Union and shall be deemed to have been elected as a Guardian for and shall represent the Parish of Quinton upon the Board of Guardians of the Poor of the King's Norton Union as if he had been originally elected to represent that Parish upon that Board until the date upon which he would have retired if this Order had not been made.

Transfer of
powers duties
liabilities &c.
of Parish
Council and
Parish Meet-
ing.

Art. XXV.—(1) Subject to the provisions of this Order the Parish Council of Quinton shall cease to exist and any powers and duties transferred by the Act of 1894 to that Parish Council or to the Parish Meeting of that Parish shall be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if that Parish had been included in an Urban District on the appointed day within the meaning of the Act of 1894 and all property or liabilities held or incurred for the purpose or by virtue of those powers or duties shall by virtue of this Order pass to and vest in or attach to the persons and authorities aforesaid Any property or liabilities of the said Parish Council held or incurred otherwise than by virtue or for the purposes of those powers or duties shall by virtue of this Order vest in and be transferred and attach to the Corporation.

Audit of
accounts of
Parish Coun-
cil.

(2) The accounts of the Parish Council of Quinton and of its committees and officers if any shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and with the like incidents and consequences as if this Order had not been made:

Provided that the audit may be held as soon as practicable after the commencement of this Order any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the District Auditor at the audit to be due from any person shall be paid to the treasurer of the City.

[9 EDW. 7.] *Local Government Board's* [Ch. cxxii.]
Provisional Orders Confirmation (No. 7) Act, 1909.

Art. XXVI. Every person who at the commencement of this Order A.D. 1909.
has acquired or is in the course of acquiring a status of irremovability *Birmingham*
from the Stourbridge Union by reason of residence in the Parish of *Order.*
Quinton shall be deemed to have acquired or to be in the course of *Removal of*
acquiring a status of irremovability from the King's Norton Union by *the poor.*
reason of residence in the Parish of Quinton.

Art. XXVII. All contribution orders made by the Guardians of *Saving for*
the Poor of the Stourbridge Union and all precepts made by the *contribution*
Rural Council before the commencement of this Order shall be as *orders and*
valid in law as if this Order had not been made. *precepts.*

Art. XXVIII. This Order may be cited as the Birmingham Short title.
(Extension) Order 1909.

The SCHEDULES above referred to.

THE FIRST SCHEDULE.

PART I.—LOCAL ACTS.

Session and Chapter.	Short Title.
46 & 47 Vict. c. lxx.	- The Birmingham Corporation (Consolidation) Act 1883.
55 & 56 Vict. c. clxxiii.	- The Birmingham Corporation Water Act 1892.
59 & 60 Vict. c. xxxii.	- The Birmingham Corporation Water Act 1896.
62 & 63 Vict. c. clxix.	- The Birmingham Corporation Act 1899.
63 & 64 Vict. c. lxxiv.	- The Birmingham Corporation (Stock) Act 1900.
2 Edw. 7. c. xviii.	- The Birmingham Corporation Water Act 1902.
3 Edw. 7. c. xcii.	- The Birmingham Corporation Act 1903.
5 Edw. 7. c. lviii.	- The Birmingham Corporation Act 1905.
7 Edw. 7. c. xviii.	- The Birmingham Corporation Act 1907.
7 Edw. 7. c. xli.	- The Birmingham Corporation Water Act 1907.

[Ch. cxxii.] *Local Government Board's* [9 EDW. 7.]
Provisional Orders Confirmation (No. 7) Act, 1909.

A.D. 1909.

PART II.—CONFIRMATION ACTS.

*Birmingham
Order.*

Session and Chapter.	Short Title.	Order thereby confirmed.
39 & 40 Vict. c. ccxxxv.	The Local Government Board's Provisional Orders Confirmation (Artizans and Labourers Dwellings) Act 1876.	The Order relating to the Borough of Birmingham.
43 & 44 Vict. c. clxxviii.	The Local Government Board's Provisional Orders Confirmation (Bethesda &c.) Act 1880.	The Birmingham Corporation Stock Order 1880.
44 & 45 Vict. c. lxviii.	The Local Government Board's Provisional Order Confirmation (Birmingham) Act 1881.	The Birmingham Corporation Stock Order 1881.
45 & 46 Vict. c. lxi.	The Local Government Board's Provisional Orders Confirmation (No. 3) Act 1882.	Order dated the 3rd day of May 1882 relating to the Borough of Birmingham.
54 & 55 Vict. c. clxi.	The Local Government Board's Provisional Order Confirmation (No. 13) Act 1891.	The City of Birmingham Order 1891.
57 & 58 Vict. c. cxxiii.	The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1894.	The Birmingham Order 1894.
58 & 59 Vict. c. xciii.	The Local Government Board's Provisional Orders Confirmation (Housing of Working Classes) Act 1895.	The Birmingham (Housing of the Working Classes) Order 1895.
60 & 61 Vict. c. cxliii.	The Local Government Board's Provisional Orders Confirmation (No. 16) Act 1897.	The Birmingham Order 1897.
4 Edw. 7. c. cxiii.	The Education Board Provisional Order Confirmation (Birmingham) Act 1904.	Order of the Board of Education dated the 20th day of April 1904 and relating to the City and County Borough of Birmingham.

THE SECOND SCHEDULE.

PART I.—LOCAL ACT.

Session and Chapter.	Short Title.
60 Vict. c. xlvi.	The Birmingham Tame and Rea District Drainage Board Act 1897.

[9 EDW. 7.] *Local Government Board's* [Ch. cxxii.]
Provisional Orders Confirmation (No. 7) Act, 1909.

PART II.—CONFIRMATION ACTS.

A.D. 1909.

*Birmingham
Order.*

Session and Chapter.	Short Title.	Order thereby confirmed.
40 & 41 Vict. c. ccxxix.	The Local Government Board's Provisional Orders Confirmation (Joint Boards) Act 1877.	The Birmingham Tame and Rea Main Sewerage Order 1877.
44 & 45 Vict. c. cii.	The Local Government Board's Provisional Orders Confirmation (Birmingham Tame and Rea &c.) Act 1881.	The Birmingham Tame and Rea Main Sewerage Order 1881.
59 & 60 Vict. c. cvii.	The Local Government Board's Provisional Orders Confirmation (No. 12) Act 1896.	The Birmingham Tame and Rea Main Sewerage Order 1896.
63 & 64 Vict. c. cxvi.	The Local Government Board's Provisional Orders Confirmation (No. 15) Act 1900.	The Birmingham Tame and Rea Main Sewerage Order 1900.
2 Edw. 7. c. lxxxii.	The Local Government Board's Provisional Orders Confirmation (No. 8) Act 1902.	The Birmingham Tame and Rea Main Sewerage Order 1902.
8 Edw. 7. c. cxlvi.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1908.	The Birmingham Tame and Rea Main Sewerage Order 1908.

Given under the Seal of Office of the Local Government Board
this Fifteenth day of May One thousand nine hundred and
nine.

(L.S.)

JOHN BURNS President.
S. B. PROVIS Secretary.

A.D. 1909.

CITY OF WAKEFIELD.

*Wakefield
Order.*

*Provisional Order made in pursuance of Sections 54 and 59 of
the Local Government Act 1888.*

To the Mayor Aldermen and Citizens of the City of Wakefield ;—

To the Justices of the Peace for the said City ;—

To the Justices of the Peace for the County of the West Riding
of Yorkshire in Quarter Sessions assembled ;—

To the County Council of the West Riding of Yorkshire ;—

To the Urban District Council of Sandal Magna ;—

To the Guardians of the Poor of the Wakefield Union ;—

To the Overseers of the Poor of the Parish of Wakefield and of
the Township of Sandal Magna ;—

To the Wakefield and District Smallpox Isolation Hospital Com-
mittee ;—

And to all others whom it may concern.

51 & 52 Vict.
c. 41.

WHEREAS by Section 54 of the Local Government Act 1888 the
Local Government Board are empowered to make a Provisional Order
for altering the boundary of any Borough ;

And whereas the City of Wakefield is a Borough within the
meaning of the Local Government Act 1888 and the inhabitants are
a body corporate by the name of the Mayor Aldermen and Citizens
of the City of Wakefield and act by the Council of the said City
which now consists of the Mayor (who is also an Alderman) eight
other Aldermen and twenty-seven Councillors and the said City is for
the purposes of the election of Councillors divided into eight wards
termed respectively the Alverthorpe Ward the Calder Ward the Kirkgate
Ward the Northgate Ward the North Westgate Ward the Primrose
Hill Ward the Saint Johns Ward and the South Westgate Ward ;

And whereas the said City is co-extensive with the Parish of
Wakefield and is an Urban District of which the Mayor Aldermen
and Citizens acting by the Council are the Urban District Council ;

And whereas the said City has a separate commission of the peace
and police force ;

2 Edw. 7.
c. 42.

And whereas in pursuance of the Education Act 1902 the Council
of the said City are the local education authority for the purposes
of Part III. of that Act and the County Council of the West Riding of
Yorkshire are the local education authority for the other purposes of
that Act ;

[9 EDW. 7.] *Local Government Board's* [Ch. cxxii.]
Provisional Orders Confirmation (No. 7) Act, 1909.

And whereas the unrepealed provisions of the Local Acts specified in Part I. of the Schedule to this Order and of the Confirmation Acts specified in Part II. of the said Schedule so far as the last-mentioned Acts relate to the Orders specified in that Schedule are in force in the said City; A.D. 1909.
Wakefield
Order.

And whereas the Urban District Council have adopted the provisions of—

- | | |
|--|-------------------------|
| (A) The Infectious Disease (Prevention) Act 1890; | 53 & 54 Vict.
c. 34. |
| (B) Parts II. III. and IV. of the Public Health Acts Amendment Act 1890; and | 53 & 54 Vict.
c. 59. |
| (c) The Notification of Births Act 1907; | 7 Edw. 7.
c. 40. |

and those provisions are accordingly in force in the said City;

And whereas the Baths and Washhouses Acts 1846 to 1899 and the Public Libraries Acts 1892 to 1901 are in force in the said City;

And whereas the Council of the said City are the authority for the execution of the Burial Acts 1852 to 1906 within the said City; 9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.
41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.
59 & 60 Vict. c. 59.
62 & 63 Vict. c. 29.
55 & 56 Vict. c. 53.
56 Vict. c. 11.
1 Edw. 7. c. 19.
15 & 16 Vict. c. 85.
6 Edw. 7. c. 44.

And whereas the Urban District of Sandal Magna in the County of the West Riding of Yorkshire immediately adjoins the said City and is co-extensive with the Township of Sandal Magna and is subject to the jurisdiction of the Urban District Council of Sandal Magna and the said Urban District is for the purpose of the election of Urban District Councillors divided into three wards termed respectively the Central Ward the North Ward and the South Ward;

And whereas the Urban District Council of Sandal Magna have adopted the provisions of—

- | | |
|--|-------------------------|
| (A) Parts II. and III. of the Public Health Acts Amendment Act 1890; and | 53 & 54 Vict.
c. 59. |
| (B) The Private Street Works Act 1892; | 55 & 56 Vict.
c. 57. |

and those provisions are accordingly in force in the Urban District of Sandal Magna;

And whereas the Parish of Wakefield and the Township of Sandal Magna are included in the Wakefield Union and ten guardians are elected for the Parish of Wakefield and three guardians are elected for the Township of Sandal Magna;

And whereas in pursuance of the Education Act 1902 the said Township of Sandal Magna forms part of the area of the County Council of the West Riding of Yorkshire as the local education authority;

And whereas by an Order made by the County Council of the West Riding of Yorkshire in pursuance of the Isolation Hospitals Acts 1893 and 1901 and termed the Wakefield and District Small-Pox Isolation Hospital (West Riding of Yorkshire) Order 1903 as confirmed 56 & 57 Vict.
c. 68.
1 Edw. 7.
c. 8.

[Ch. cxxii.] *Local Government Board's* [9 EDW. 7.]
Provisional Orders Confirmation (No. 7) Act, 1909.

A.D. 1909. by the County of the West Riding of Yorkshire (Wakefield and District
Wakefield Small-Pox Isolation Hospital District) Confirmation Order 1904 a
Order. hospital district which consists of the said City and certain urban
and rural districts (including the Urban District of Sandal Magna)
and is called the Wakefield and District Small-Pox Isolation Hospital
District has been constituted for the purposes of the provision main-
tenance and management of isolation hospital accommodation under
the said Acts for the reception of patients suffering from small-pox and
the Wakefield and District Small-Pox Isolation Hospital Committee
consists of fifteen members including one elected by the said Urban
District Council :

51 & 52 Vict. Now therefore We the Local Government Board in pursuance of
c. 41. the powers given to Us by Sections 54 and 59 of the Local Govern-
ment Act 1888 and by any other enactments in that behalf do hereby
order that from and after the date of the Act of Parliament confirming
this Order the following provisions shall take effect:—

Definitions.

Art. I. In this Order—

- (1) The expression “the commencement of this Order” means
the Ninth day of November One thousand nine hundred
and nine ;
- (2) The expression “the existing City” means the City of Wake-
field as it existed immediately prior to the commencement
of this Order ;
- (3) The expression “the City” means the existing City as extended
by this Order ;
- (4) The expression “the Corporation” means as the context
requires the Mayor Aldermen and Citizens of the existing
City or of the City acting by the Council ;
- (5) The expressions “the County” and “the County Council”
mean respectively the Administrative County of the West
Riding of Yorkshire and the County Council of that
County ;
- (6) The expressions “the Sandal Magna District” and “the
Sandal Magna Council” mean respectively the Urban
District of Sandal Magna and the Urban District Council
of that District ;
- (7) The expression “the City maps” means the two maps each
marked “Map of the City of Wakefield as extended
1909” and sealed with the official seal of the Local
Government Board ;

- (8) The expression "the Ward maps" means the two maps each marked "Map of the new Wards of the City of Wakefield as constituted by the Wakefield (Extension) Order 1909" and sealed with the official seal of the Local Government Board ; A.D. 1909.
—
Wakefield
Order.
- (9) The expression "the added area" means the Sandal Magna District the area whereof is coloured green on the City maps ;
- (10) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894 ;
- (11) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same ;
- (12) The expressions "the Isolation Hospital Order 1903" and "the Isolation Hospital Order 1904" mean respectively the Wakefield and District Small-Pox Isolation Hospital (West Riding of Yorkshire) Order 1903 and the County of the West Riding of Yorkshire (Wakefield and District Small-Pox Isolation Hospital District) Confirmation Order 1904 ;
- (13) The expressions "the Isolation Hospital District" and "the Isolation Hospital Committee" mean respectively the Wakefield and District Small-Pox Isolation Hospital District and the Wakefield and District Small-Pox Isolation Hospital Committee ;
- (14) The expression "the Electric Lighting Order of 1894" means the Wakefield Corporation Electric Lighting Order 1894.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and nine : Commence-
ment of
Order.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the City under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any Date of
operation
of Order for
parish bur-
gess lists &c.
51 Vict. c. 10.

A.D. 1909. municipal election to be held on the ordinary day of election in the
Wakefield year one thousand nine hundred and nine this Order shall operate
Order. from the date of the Act of Parliament confirming this Order.

Extension of
City.

Art. III.—(1) The boundary of the existing City the area whereof
is coloured pink on the City maps shall be altered so as to include
in addition to that area the Sandal Magna District.

(2) The boundary of the City shall be that shown by a red line
on the City maps and the whole of the area within that boundary shall
for the purposes of the Municipal Corporations Acts and for all other
purposes be the City.

Deposit of
maps.

Art. IV.—(1) One of the City maps and one of the Ward maps
shall be deposited in the office of the Local Government Board and
the other shall be deposited by the town clerk of the existing City at
his office within fourteen days after the date of this Order. Copies of
the City map deposited with the town clerk certified by him to be
true shall be sent within one month after the date of the Act of
Parliament confirming this Order to the clerk of the County Council
to the Board of Inland Revenue to the Registrar-General and to the
Board of Agriculture and Fisheries and a copy of the Ward map so
deposited and certified in like manner shall be sent within the said
period to the Registrar-General and to the Board of Agriculture and
Fisheries.

Copies of
map to be
evidence.

(2) Copies of or extracts from the City map deposited with the
town clerk certified by him to be true shall be received in all courts
of justice and elsewhere as *primâ facie* evidence of the contents of the
map so far as it relates to the boundaries of the City and the map
shall at all reasonable times be open to inspection by any person liable
to any rate leviable within the City and any such person shall be
entitled to a copy of or extract from the map certified by the town
clerk to be true on payment of a reasonable fee to be determined by
the Corporation. All fees so received shall be carried to the credit of
the city fund.

Powers and
duties of
justices &c.
extended.

Art. V. The powers and duties of the justices of the peace
appointed for the existing City of the clerk to those justices and of
the police constables and other peace officers of the existing City shall
extend to and apply throughout the City:

Provided that every person committing an offence in any part of
the added area prior to the commencement of this Order shall be tried
adjudicated on and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the com-
mencement of this Order has been begun by or before any justice or
justices in relation to any matter arising in or concerning any part of
the added area may be carried on continued or completed in like

[9 EDW. 7.] *Local Government Board's* [Ch. cxxii.]
Provisional Orders Confirmation (No. 7) Act, 1909.

manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

A.D. 1909.

*Wakefield
Order.*

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and the other lists to be made under the Municipal Corporations Acts and of all matters connected with incidental to or consequent upon those purposes the added area shall be deemed to have always been part of the City. Parish bur-
gess lists &c.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

(3) Where any difficulty in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk of the existing City or the clerk to the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk to the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

Art. VII. The number of Councillors of the City shall be increased from twenty-seven to thirty-three and the number of Aldermen of the City shall be increased from nine to eleven. Number of
Councillors
and Alder-
men.

Art. VIII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:— Division into
wards.

(1) For the purposes of the election of Councillors the City shall be divided into eleven wards:

(2) Of the eight existing wards the following wards and the number of Councillors respectively apportioned thereto shall remain unaltered namely the Alverthorpe Ward the North Westgate Ward the Primrose Hill Ward the Saint John's Ward and the South Westgate Ward:

A.D. 1909.

*Wakefield
Order.*

- (3) The area comprised in the existing Northgate Ward shall be divided into two wards to be termed respectively the Eastmoor Ward comprising that portion of the City which is coloured pink on the ward maps and the Northgate Ward comprising that portion of the City which is coloured blue on the ward maps :
- (4) The area comprised in the existing Calder Ward shall together with the added area be formed into three wards to be termed respectively the Belle Vue Ward comprising that portion of the City which is coloured brown on the ward maps the Calder Ward comprising that portion of the City which is coloured yellow on the ward maps and the Sandal Ward comprising that portion of the City which is coloured green on the ward maps :
- (5) Three Councillors shall be assigned to each of the wards constituted by subdivisions (3) and (4) of this Article :
- (6) The Councillors representing the existing Calder Ward who will not go out of office on the First day of November One thousand nine hundred and nine shall be deemed from and after the commencement of this Order to represent the Calder Ward constituted by this Order :
- (7) The number of Councillors apportioned to the Kirkgate Ward shall be reduced from six to three and the following provisions shall take effect with regard to the retirement of the Councillors representing that ward :—
- (A) One Councillor only shall be elected in place of the two Councillors who if this Order had not been made would go out of office on the First day of November One thousand nine hundred and nine ;
- (B) One of the two Councillors who would have retired on the First day of November One thousand nine hundred and ten and one of the two Councillors who would have retired on the First day of November One thousand nine hundred and eleven if this Order had not been made shall retire on the First day of November One thousand nine hundred and nine and their places shall not be filled up ;
- (C) The Councillor who will retire in each case in pursuance of paragraph (B) of this subdivision shall be the Councillor who was elected by the smallest number of votes on the First day of November One thousand nine hundred and seven and on the Second day of

[9 EDW. 7.]

Local Government Board's [Ch. cxxii.]
Provisional Orders Confirmation (No. 7) Act, 1909.

November One thousand nine hundred and eight respectively but if by reason of a casual vacancy having occurred among the Councillors elected in either of those years or if for any other reason it is doubtful which of the Councillors ought to retire as aforesaid the Council of the City shall at their ordinary meeting held next before the First day of November One thousand nine hundred and nine by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors shall go out of office in pursuance of the said paragraph.

A.D. 1909.

Wakefield
Order.

Art. IX.—(1) The first election of Councillors for the Belle Vue Eastmoor Northgate and Sandal Wards constituted by this Order shall be held on the First day of November One thousand nine hundred and nine and the Mayor of the existing City shall be the returning officer at the election for those wards. Provided that the Mayor of the existing City may appoint some other person to act as returning officer at the election for any of the wards.

First election
of Council-
lors and
Aldermen.

(2) The first election of the two additional Aldermen of the City shall take place on the Ninth day of November One thousand nine hundred and nine and of the two additional Aldermen then to be elected one shall be chosen from among the Councillors elected for the said Belle Vue Ward or from among the persons qualified to be Councillors whose qualifying property is situate in that ward and one from among the Councillors elected for the said Sandal Ward or from among the persons qualified to be Councillors whose qualifying property is situated in that ward.

Art. X.—(1) The Councillors elected in the year One thousand nine hundred and nine for the said Belle Vue Eastmoor Northgate and Sandal Wards shall retire as follows:—

Retirement
of Council-
lors and
Aldermen
elected in
1909.

(A) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and ten:

(B) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and twelve:

(C) The other Councillor for each ward on the First day of November One thousand nine hundred and eleven.

(2) The two additional Aldermen elected for the City in the year one thousand nine hundred and nine shall retire as follows:—

(A) The Alderman elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and ten:

[Ch. cxxii.] *Local Government Board's* [9 EDW. 7.]
Provisional Orders Confirmation (No. 7) Act, 1909.

A.D. 1909.

*Wakefield
Order.*

(B) The other Alderman on the Ninth day of November One thousand nine hundred and thirteen.

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the City shall on the Ninth day of November One thousand nine hundred and nine or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

*Local Acts
and Orders.*

Art. XI. Subject to the provisions of this Order the unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the Schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that schedule and of any other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing City or the Corporation as the same respectively are in force within the existing City at the commencement of this Order shall extend and apply to the City and any reference therein to the existing City and the Corporation shall be deemed to refer to the City and the Corporation thereof:

Provided that nothing in this Article or in the Electric Lighting Order of 1894 as extended and applied to the City by this Article shall prejudicially affect the undertaking or powers of the Yorkshire Electric Power Company under the Yorkshire Electric Power Act 1901 in relation to the added area and that in relation to the added area that Act shall continue to apply as if within the meaning of the said Act the added area were an Urban District of which the Corporation of the City are the Council and formed no part of the City and as if no consent of a distributing authority were required in any case to enable the Company to supply energy in the added area.

Byelaws &c.

Art. XII.—(1) Subject to the provisions of this Order all byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing City shall thenceforth apply to the City until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments or scale of charges are altered or repealed.

(2) All byelaws and regulations made by the Sandal Magna Council or their predecessors and in force immediately before the commencement of this Order in any part of the Sandal Magna District shall on that date cease to be in force except as regards any work which has been

[9 EDW. 7.] *Local Government Board's* [Ch. cxxii.]
Provisional Orders Confirmation (No. 7) Act, 1909.

begun before that date or as regards any work which has not been so begun but for which plans have been approved by the Sandal Magna Council before that date or have been sent to the surveyor or clerk to the Sandal Magna Council one month at least before that date and shall not have been disapproved by that Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the City were referred to therein instead of the Sandal Magna Council and the Sandal Magna District. Provided that any proceedings which if this Order had not been made might have been taken by the Sandal Magna Council for any offence committed before the commencement of this Order against any byelaws and regulations made by the Sandal Magna Council or their predecessors and in force immediately before the commencement of this Order in any part of the added area may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for that Council.

A.D. 1909.

*Wakefield
Order.*

Art. XIII.—(1) The Isolation Hospital Order 1903 and the Isolation Hospital Order 1904 shall have effect—

Provision for
Hospital Dis-
trict and
Hospital
Committee.

- (A) As if from those Orders all particulars relating to the Sandal Magna District were omitted and references in those Orders to the constituent districts and constituent authorities included the City and the Corporation of the City respectively ;
- (B) As if in column 3 of the Schedule to the Isolation Hospital Order 1904 the number "6" were substituted for the number "5" opposite to the words "Wakefield City" in column 1 ; and
- (C) As if in the second column of the table contained in the proviso to Article XVII. of the Isolation Hospital Order 1903 the figures "48,256" were substituted for the figures "41,413."

(2) The provisions of Article IX. of the Isolation Hospital Order 1903 shall apply to the first election by the Corporation of the City of the additional member to represent the Corporation upon the Isolation Hospital Committee as if the election related to the filling of a casual vacancy occurring at the commencement of this Order.

(3) The member representing the Sandal Magna Council upon the Isolation Hospital Committee who may be in office at the commencement of this Order shall continue in office until the additional member

[Ch. cxxii.] *Local Government Board's* [9 EDW. 7.]
Provisional Orders Confirmation (No. 7) Act, 1909.

A.D. 1909.

—
*Wakefield
Order.*

representing the Corporation of the City shall have been elected in pursuance of this Order and shall then go out of office.

Town clerk
and other
officers con-
tinued.

Art. XIV.—(1) The town clerk and all other officers and servants of the Corporation of the existing City who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the City and shall hold their offices by the same tenure as at that date.

City auditors.

(2) The auditors who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the city auditors until the next ordinary day of election of city auditors.

Compensa-
tion to exist-
ing officers.

Art. XV.—(1) Every clerk to justices and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the City and in every other case out of the city fund and city rate of the City and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(2) For the purposes of subdivision (1) of this Article any officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the County Council or the Standing Joint Committee or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

Actions &c.
not to abate.

Art. XVI.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or

existing by or against the Sandal Magna Council shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the City.

A.D. 1909.

*Wakefield
Order.*

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Sandal Magna Council or their predecessors shall be of as full force and effect against or in favour of the Corporation of the City and may be continued and enforced as fully and effectually as if instead of the Sandal Magna Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

Saving for
contracts &c.

Art. XVII. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing City shall by virtue of this Order be held by the Corporation for the benefit of the City and the Corporation shall hold enjoy and exercise for the benefit of the City all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing City and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing City shall from and after that date attach to them in respect of the City.

Corporation
property &c.

Art. XVIII. The Sandal Magna Council shall liquidate as far as practicable before the commencement of this Order all current debts and liabilities incurred by them.

Liquidation of
current debts
and liabilities
by Sandal Magna
Council.

Art. XIX. Subject to the provisions of this Order—

Property &c.
of Sandal
Magna
Council

(1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Sandal Magna Council shall by virtue of this Order be transferred to vested in and attach to the Corporation as Urban District Council:

(2) The Sandal Magna Council shall at the commencement of this Order be abolished and cease to exist:

(3) All arrears of rates made by the Sandal Magna Council and all other payments which at the commencement of this Order are due or owing to the said Council may be collected and recovered by the Corporation.

Arrears of
rates &c.

Art. XX.—(1) In relation to the water undertaking of the Corporation Article XVI. and Article XVIII. of the Wakefield Order 1900 shall be altered and shall have effect so that the added area shall form part of the area for which that water undertaking is held in trust by the Corporation and in respect of which any balance of water revenue is applicable in relief of the rates levied in the said area and

Water debts
of Corpora-
tion.

A.D. 1909.

*Wakefield
Order.*

so that subdivision (2) and subdivision (3) of this Article shall be substituted respectively for subdivision (1) and for subdivision (2) of Article XVIII. of the Wakefield Order 1900.

(2) So much of any sums borrowed by the Corporation for the purposes of their water undertaking as remains outstanding at the commencement of this Order shall so far as those sums respectively are now charged upon and payable out of the rates leviable in the area comprising the City of Wakefield as it existed immediately prior to the Ninth day of November One thousand eight hundred and ninety-five be charged upon and payable out of the rates to be levied in pursuance of subdivision (3) of this Article.

(3) Subject to the provisions of this Order the Corporation shall from time to time make and levy such a rate in the nature of a general district rate upon the aforesaid area and upon the added area as will be sufficient to raise the sums required to be raised by rates for the repayment of the several sums to which subdivision (2) of this Article applies and for the repayment of any sums borrowed after the commencement of this Order for the purposes of their water undertaking or for the payment of interest on those sums and for making good any deficiency in the water revenue.

Mortgage
debts of
Sandal
Magna
Council and
of Corpora-
tion for
other than
waterworks
purposes.

(4) The liability for repayment of any sums borrowed by the Sandal Magna Council or of so much of any such sums as shall be owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred and attach to the Corporation and so much as will at the commencement of this Order be outstanding in respect of any sum borrowed as aforesaid together with so much of any sums borrowed by the Corporation for purposes other than the purposes of their water undertaking as will at the commencement of this Order be owing and charged upon the district fund and general district rate of the existing City shall be charged upon the district fund and general district rate of the City and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the city fund and city rate of the existing City shall by virtue of this Order be charged upon the city fund and city rate of the City.

(5) All sums to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Adoptive
Acts.

Art. XXI.—(1) The provisions of the Baths and Washhouses Acts 1846 to 1899 Parts II. III. and IV. of the Public Health Acts Amendment Act 1890 the Infectious Disease (Prevention) Act 1890 the

[9 EDW. 7.] *Local Government Board's* [Ch. cxxii.]
Provisional Orders Confirmation (No. 7) Act, 1909.

Public Libraries Acts 1892 to 1901 and the Notification of Births Act 1907 shall be in force in and apply to the City as if the same had been adopted therein. A.D. 1909.
Wakefield Order.

(2) The provisions of the Private Street Works Act 1892 shall cease to be in force and apply to any part of the added area:

Provided that nothing in this subdivision shall—

- (A) affect the operation prior to the commencement of this Order of any such provisions or anything duly done or suffered thereunder; or
- (B) affect any right privilege or obligation or liability acquired accrued or incurred under any such provisions; or
- (C) affect any penalty forfeiture or punishment incurred in respect of any offence committed against any such provisions; or
- (D) affect any investigation legal proceeding or remedy in respect of any such right privilege obligation liability penalty forfeiture or punishment as aforesaid.

Art. XXII. Subject to the provisions of any order which the Local Government Board may hereafter make— Powers under Section 33 of Act of 1894.

- (1) The provisions of the order made by the Local Government Board dated the Fifteenth day of February One thousand eight hundred and ninety-six and conferring on the Sandal Magna Council certain matters mentioned in Section 33 of the Act of 1894 shall so far as they relate to powers under subsection (2) of Section 13 of the Act of 1894 cease to

- (2) Except as otherwise provided by subdivision (1) of this Article any powers duties or liabilities vested in or attaching to the Sandal Magna Council by virtue of the order made by the Local Government Board under the said Section 33 or under Section 34 of the Act of 1894 shall by virtue of this Order vest in and attach to the Corporation in respect of the Township of Sandal Magna in like manner and with the like effect in all respects as if instead of the Sandal Magna Council the Corporation had been referred to in the order so made as aforesaid.

Art. XXIII. For the purposes and subject to the provisions of the Education Acts 1870 to 1907— Transfer of public elementary schools &c. to Corporation.

- (1) All public elementary schools (including the sites and school-houses) provided by the local education authority and situate within any part of the added area with the furniture and fittings of the schoolhouses shall by virtue of this Order be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein

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*Wakefield
Order.*

of the County Council as the local education authority and all contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of the said public elementary schools furniture or fittings or of any other public elementary school situate in any part of the added area or with respect to the officers teachers and servants of any of the said public elementary schools shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority :

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision :

Mortgage
debts in
respect of
transferred
schools.

- (2) The liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) and any furniture or fittings transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the City fund and the City rate of the City ~~and shall be repaid by the Corporation within the~~ period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable :

Education
byelaws.

- (3) Any byelaws in force in the existing City immediately before the commencement of this Order shall from and after that date apply to the City until revoked or altered and from and after that date any byelaws then in force in any part of the added area shall cease to be in force :
- (4) Any managers of public elementary schools in the added area who were appointed by the Sandal Magna Council or by the County Council shall vacate office at the commencement of this Order.

Differential
rating.

Art. XXIV. During a period of seventeen years from the commencement of this Order the general district rate and any rate in the nature of a general district rate to be levied in any one year by the Corporation in respect of any hereditament in the added area shall not exceed such an amount in the pound as when added to the City

[9 EDW. 7.] *Local Government Board's* [Ch. cxxii.]
Provisional Orders Confirmation (No. 7) Act, 1909.

rate the poor rate and any other rate made by the Corporation in the same year will in respect of the assessment of any hereditament included in any such rate make up a total of six shillings and sevenpence in each pound of the rateable value of the hereditament.

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*Wakefield
Order.*

Art. XXV. The accounts of the Sandal Magna Council and of the committees and officers of that council shall be made up to the commencement of this Order and shall be audited in like manner and subject to the like incidents and consequences as if this Order had not been made:

Audit of
accounts of
Sandal
Magna
Council.

Provided that the audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding:

Provided also that any sum certified by the district auditor to be due from any person shall be paid to the treasurer of the City.

Art. XXVI. The Corporation shall be the Burial Board for the City and shall have within the City to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts 1852 to 1906.

Corporation
to be Burial
Board for
City.

Art. XXVII.—(1) At the commencement of this Order such members if any of the police force of the County as shall be determined by agreement to be made as soon as practicable after the date of the Act of Parliament confirming this Order between the Standing Joint Committee of the County and the Watch Committee of the existing City or in default of such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the City and any member of the county police force so transferred shall hold office upon the same tenure and upon the same terms and conditions as if this Order had not been made and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he is entitled shall not be less than they would have been if this Order had not been made.

County
Police.

(2) The provisions of Section 15 (2) of the Police Act 1890 as amended by the Police (Superannuation) Act 1906 shall extend and apply to and in relation to any member of the police force transferred under the powers of this Article as if that member had removed with the written sanction of the Chief Constable of the County.

53 & 54 Vict.
c. 45.
6 Edw. 7.
c. 7.

Art. XXVIII. This Order may be cited as the Wakefield (Extension) Order 1909.

Short title.

[Ch. cxxii.] *Local Government Board's* [9 EDW. 7.]
Provisional Orders Confirmation (No. 7) Act, 1909.

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*Wakefield
Order.*

The SCHEDULE above referred to.

PART I.—LOCAL ACTS.

Session and Chapter.	Title or Short Title.
25 & 26 Vict. c. xcix.	The Wakefield Waterworks Act 1862.
36 Vict. c. xix.	The Wakefield Waterworks Act 1873.
37 & 38 Vict. c. cxiii.	The Wakefield Waterworks Act 1874.
39 & 40 Vict. c. ccxxii.	The Wakefield Waterworks Act 1876.
40 & 41 Vict. c. cxviii.	The Wakefield Improvement Act 1877.
43 & 44 Vict. c. lvii.	The Wakefield Corporation Waterworks Act 1880.
50 & 51 Vict. c. lxxi.	The Wakefield Corporation Act 1887.
52 & 53 Vict. c. lxviii.	The Wakefield Corporation Act 1889.
57 & 58 Vict. c. xcix.	The Wakefield Corporation Water Act 1894.
62 & 63 Vict. c. ccxlv.	The Wakefield Corporation Act 1899.
63 & 64 Vict. c. lxxx.	The Wakefield Corporation Market Act 1900.

PART II.—CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order relating to Wakefield thereby confirmed.
16 Vict. c. xxiv.	The Public Health Supplemental Act 1853 (No. 1).	The Order dated 20th November 1852.
41 & 42 Vict. c. clxii.	The Local Government Board's Provisional Orders Confirmation (Bournemouth &c.) Act 1878.	The Order dated 7th May 1878.
57 & 58 Vict. c. cxiv.	The Electric Lighting Orders Confirmation (No. 3) Act 1894.	Wakefield Corporation Electric Lighting Order 1894.
59 Vict. c. xiii.	The Local Government Board's Provisional Orders Confirmation (No. 19) Act 1895 Session 2.	The City of Wakefield Order 1895.
63 & 64 Vict. c. clxxxi.	The Local Government Board's Provisional Orders Confirmation (No. 12) Act 1900.	The Wakefield Order 1900.
1 Edw. 7. c. cxlviii.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1901.	The Wakefield Order 1901.

Given under the Seal of Office of the Local Government Board
this Eighth day of May One thousand nine hundred and
nine.

(L.S.)

JOHN BURNS President.

S. B. PROVIS Secretary.

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